

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1218

Introduced by Brandt, 32.

Read first time January 21, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the County Bridge Match Program; to amend
- 2 sections 39-2805 and 66-4,100, Revised Statutes Cumulative
- 3 Supplement, 2024; to require the County Bridge Match Working Group
- 4 to award money as prescribed; to change provisions of the Highway
- 5 Cash Fund and the Roads Operations Cash Fund; to provide for
- 6 transfers of money from the Roads Operations Cash Fund; to eliminate
- 7 obsolete provisions; and to repeal the original sections.
- 8 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 39-2805, Revised Statutes Cumulative Supplement,
2 2024, is amended to read:

3 39-2805 (1) The County Bridge Match Program is created. The
4 department shall administer the program using funds from the
5 Transportation Infrastructure Bank Fund. The purpose of the program is to
6 promote innovative solutions and provide additional funding to accelerate
7 the repair and replacement of deficient bridges on the county road
8 system. Participation by counties in the program shall be voluntary.

9 (2)(a) ~~(2)~~ The County Bridge Match Working Group is hereby created.
10 The Governor shall appoint two representatives to serve on the working
11 group from a list of county highway superintendents, county surveyors, or
12 county engineers submitted by a statewide association representing county
13 officials. The Director-State Engineer shall select three representatives
14 of the department to serve on the working group. The working group shall
15 develop the program, including participation criteria and matching fund
16 requirements for counties, and shall score the applications and award the
17 funds. A meeting of the working group does not constitute a meeting as
18 defined in section 84-1409.

19 (b) The working group shall award at least four million dollars to
20 applicants each fiscal year under the County Bridge Match Program.

21 (3) The County Bridge Match Program terminates on June 30, 2029.

22 **Sec. 2.** Section 66-4,100, Revised Statutes Cumulative Supplement,
23 2024, is amended to read:

24 66-4,100 (1) The Highway Cash Fund and the Roads Operations Cash
25 Fund are hereby created. If bonds are issued pursuant to subsection (2)
26 of section 39-2223, the balance of the share of the Highway Trust Fund
27 allocated to the Department of Transportation and deposited into the
28 Highway Restoration and Improvement Bond Fund as provided in subsection
29 (8) of section 39-2215 and the balance of the money deposited in the
30 Highway Restoration and Improvement Bond Fund as provided in section
31 39-2215.01 shall be transferred by the State Treasurer, on or before the

1 last day of each month, to the Highway Cash Fund. If no bonds are issued
2 pursuant to subsection (2) of section 39-2223, the share of the Highway
3 Trust Fund allocated to the Department of Transportation shall be
4 transferred by the State Treasurer on or before the last day of each
5 month to the Highway Cash Fund.

6 (2) The Legislature may direct the State Treasurer to transfer funds
7 from the Highway Cash Fund to the Roads Operations Cash Fund. Both funds
8 shall be expended by the department for:

9 (a) Acquiring ~~(1) for acquiring~~ real estate, road materials,
10 equipment, and supplies to be used in the construction, reconstruction,
11 improvement, and maintenance of state highways; τ

12 (b) The ~~(2) for the~~ construction, reconstruction, improvement, and
13 maintenance of state highways, including grading, drainage, structures,
14 surfacing, roadside development, landscaping, and other incidentals
15 necessary for proper completion and protection of state highways as the
16 department shall, after investigation, find and determine shall be for
17 the best interests of the highway system of the state, either independent
18 of or in conjunction with federal-aid money for highway purposes; τ

19 (c) The ~~(3) for the~~ share of the department of the cost of
20 maintenance of state aid bridges; τ

21 (d) Planning ~~(4) for planning~~ studies in conjunction with federal
22 highway funds for the purpose of analyzing traffic problems and financial
23 conditions and problems relating to state, county, township, municipal,
24 federal, and all other roads in the state and for incidental costs in
25 connection with the federal-aid grade crossing program for roads not on
26 state highways; τ

27 (e) Tests ~~(5) for tests~~ and research by the department or
28 proportionate costs of membership, tests, and research of highway
29 organizations when participated in by the highway departments of other
30 states; τ

31 (f) The ~~(6) for the~~ payment of expenses and costs of the Board of

1 Examiners for County Highway and City Street Superintendents as set forth
2 in section 39-2310. 7

3 ~~(g) Support (7) for support~~ of the public transportation assistance
4 program established under section 13-1209 and the intercity bus system
5 assistance program established under section 13-1213; ~~;~~ ;

6 (h) Purchasing ~~(8) for purchasing~~ from political or governmental
7 subdivisions or public corporations, pursuant to section 39-1307, any
8 federal-aid transportation funds available to such entities;

9 (i) Costs ~~(9) for costs~~ related to the administration of the
10 Division of Aeronautics of the Department of Transportation as specified
11 in section 3-107; ~~+~~ -

12 (j) Furnishing ~~(10) for furnishing~~ the Nebraska Broadband Office
13 with necessary office space, furniture, equipment, and supplies as well
14 as providing administrative and budgetary support, including salaries for
15 professional, technical, and clerical assistants, as provided in section
16 81-702; ~~and~~

17 (k) The ~~(11)~~ for the County Bridge Match Program.

(3) The State Treasurer shall transfer five ~~four~~ million dollars from the Roads Operations Cash Fund to the Transportation Infrastructure Bank Fund on or before June 30, 2026 ~~2024~~, on such dates and in such amounts as directed by the budget administrator of the budget division of the Department of Administrative Services. The money shall be used for the County Bridge Match Program. The State Treasurer shall transfer five ~~four~~ million dollars from the Roads Operations Cash Fund to the Transportation Infrastructure Bank Fund on or before June 30, 2027 ~~2025~~, on such dates and in such amounts as directed by the budget administrator of the budget division of the Department of Administrative Services. The money shall be used for the County Bridge Match Program.

29 (4) Any money in the Highway Cash Fund and the Roads Operations Cash
30 Fund not needed for current operations of the department shall, as
31 directed by the Director-State Engineer to the State Treasurer, be

1 invested by the state investment officer pursuant to the Nebraska Capital
2 Expansion Act and the Nebraska State Funds Investment Act, subject to
3 approval by the board of each investment. All income received as a result
4 of such investment shall be placed in the Highway Cash Fund.

5 **Sec. 3.** Original sections 39-2805 and 66-4,100, Revised Statutes
6 Cumulative Supplement, 2024, are repealed.